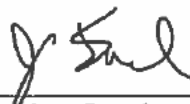


### **FIRST ENDORSEMENT**

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office July 5, 2023,. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-24572 against Police Officer Erik Leonardo, Tax Registry No. 938846.

The case was conferenced on March 28, 2023, before Assistant Deputy Commissioner of Trials Jeff S. Adler, who approved the negotiated penalty of forfeiture of 15 (FIFTEEN) vacation days, after a guilty plea. After further review, this case was re-conferenced on June 22, 2023 before Assistant Deputy Commissioner of Trials Vanessa Facio – Lince, who approved the negotiated penalty of forfeiture of 15 (FIFTEEN) vacation days, after a guilty plea.



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Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                |
|--------------------------------|
| CASE NO.<br>2022-24572         |
| BOOK & PAGE NO.<br>Page 1 of 4 |
| PERSONNEL ORDER NO.            |

|                          |                            |                      |                              |                         |
|--------------------------|----------------------------|----------------------|------------------------------|-------------------------|
| RANK/TITLE<br>POM        | SURNAME,<br>LEONARDO       | FIRST<br>ERIK        | M.I.<br>R                    | COMMAND<br>020 PRECINCT |
| SHIELD NO.<br>27779      | TAX REGISTRY NO.<br>938846 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>07/11/2005 |                         |
| RANK/NAME OF COMPLAINANT |                            |                      |                              | COMMAND                 |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                              | DATE TRIAL CONCLUDED    |

**TRIAL COMMISSIONER**

| SPECIFICATION                                                                                                                                                                                                                                                                                                                                                                                                                  | DISPOSITION    | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ]                                                                     |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------------------------------------------------------------------------------------------------|
| 1 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New York County, was discourteous, in that he spoke discourteously to § 87(2)(b) in that he said to § 87(2)(b) "I don't give a fuck," "What the fuck are you going to do," "these fucking guys," "fucking asshole," without police necessity. | PLEADED GUILTY | VACATION DAYS 15.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. |
| 2 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New York County, used offensive language, in that he made offensive remarks to § 87(2)(b) in that called § 87(2)(b) "fucking bum" and "dirty bum."                                                                                            | PLEADED GUILTY |                                                                                                               |
| 3 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New York County, used offensive language, in that he said "fucking bum" and "dirty bum" to another individual.                                                                                                                                | PLEADED GUILTY |                                                                                                               |
| 4 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New                                                                                                                                                                                                                                           | PLEADED GUILTY |                                                                                                               |

*DC Breckline*

FIRST DEPUTY COMMISSIONER

*10/12/23*  
DATE

**POLICE COMMISSIONER'S APPROVAL**

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

*Edward A. Caber*  
POLICE COMMISSIONER

*12/15/23*  
DATE



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

CASE NO.  
2022-24572

BOOK & PAGE NO.  
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PERSONNEL ORDER NO.

|                          |                            |                      |                              |                         |
|--------------------------|----------------------------|----------------------|------------------------------|-------------------------|
| RANK/TITLE<br>POM        | SURNAME,<br>LEONARDO       | FIRST<br>ERIK        | M.I.<br>R                    | COMMAND<br>020 PRECINCT |
| SHIELD NO.<br>27779      | TAX REGISTRY NO.<br>938846 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>07/11/2005 |                         |
| RANK/NAME OF COMPLAINANT |                            |                      |                              | COMMAND                 |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                              | DATE TRIAL CONCLUDED    |

TRIAL COMMISSIONER

| SPECIFICATION                                                                                                                                                                                                                                                                                                                                                                                                     | DISPOSITION    | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ] |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------------------------------|
| York County, was discourteous, in that he spoke discourteously to an individual, in that he said "these fucking guys" without police necessity.                                                                                                                                                                                                                                                                   |                |                                           |
| 5 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New York County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force, in that he said "I'm going to beat your fucking ass" without police necessity. | PLEADED GUILTY |                                           |
| 6 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New York County, was discourteous, in that he acted discourteously toward § 87(2)(b) in that he kicked § 87(2)(b) and § 87(2)(b) cardboard signs and cup of money in the direction of § 87(2)(b) without police necessity.       | PLEADED GUILTY |                                           |
| 7 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New York County, was discourteous, in that he acted discourteously                                                                                                                                                               | PLEADED GUILTY |                                           |

*DC Brochini*

FIRST DEPUTY COMMISSIONER

*10/12/23*

DATE

**POLICE COMMISSIONER'S APPROVAL**

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

*Edward A. Cab...*

POLICE COMMISSIONER

*12/15/23*  
DATE



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                |
|--------------------------------|
| CASE NO.<br>2022-24572         |
| BOOK & PAGE NO.<br>Page 3 of 4 |
| PERSONNEL ORDER NO.            |

|                          |                            |                      |                              |                         |
|--------------------------|----------------------------|----------------------|------------------------------|-------------------------|
| RANK/TITLE<br>POM        | SURNAME,<br>LEONARDO       | FIRST<br>ERIK        | M.I.<br>R                    | COMMAND<br>020 PRECINCT |
| SHIELD NO.<br>27779      | TAX REGISTRY NO.<br>938846 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>07/11/2005 |                         |
| RANK/NAME OF COMPLAINANT |                            |                      |                              | COMMAND                 |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                              | DATE TRIAL CONCLUDED    |

TRIAL COMMISSIONER

| SPECIFICATION                                                                                                                                                                                                                                                                                                                                                                                                               | DISPOSITION    | RECOMMENDED PENALTY<br>PLEA [X ] TRIAL [ ] |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|--------------------------------------------|
| toward § 87(2)(b) in that he tossed another cardboard sign in the direction of § 87(2)(b) and said "this shit" without police necessity.                                                                                                                                                                                                                                                                                    |                |                                            |
| 8 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New York County, was discourteous, in that he acted discourteously toward an individual in that in that he kicked § 87(2)(b) and § 87(2)(b) cardboard signs and cup of money in the direction of that individual without police necessity. | PLEADED GUILTY |                                            |
| 9 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New York County, was discourteous, in that he spoke discourteously to an individual in that he tossed another cardboard sign and said "this shit" without sufficient legal authority.                                                      | PLEADED GUILTY |                                            |
| 10 . Police Officer Erik LEONARDO, on or about December 28, 2019, at approximately 1232, while assigned to 020 PCT and on duty, in the vicinity of West 73rd Street and Broadway, New York County, abused his authority as a                                                                                                                                                                                                | PLEADED GUILTY |                                            |

*DC Breckin*

FIRST DEPUTY COMMISSIONER

*10/12/23*  
DATE

**POLICE COMMISSIONER'S APPROVAL**

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

*Edward A. Caber*  
POLICE COMMISSIONER  
*12/15/23*  
DATE



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

CASE NO.  
2022-24572

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PERSONNEL ORDER NO.

|                                                                                                                                                                                                                                 |                            |                      |           |                                          |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|----------------------|-----------|------------------------------------------|
| RANK/TITLE<br>POM                                                                                                                                                                                                               | SURNAME,<br>LEONARDO       | FIRST<br>ERIK        | M.I.<br>R | COMMAND<br>020 PRECINCT                  |
| SHIELD NO.<br>27779                                                                                                                                                                                                             | TAX REGISTRY NO.<br>938846 | SOCIAL SECURITY NO.  |           | DATE APPOINTED<br>07/11/2005             |
| RANK/NAME OF COMPLAINANT                                                                                                                                                                                                        |                            |                      |           | COMMAND                                  |
| DATE OF CHARGES                                                                                                                                                                                                                 |                            | DATE TRIAL COMMENCED |           | DATE TRIAL CONCLUDED                     |
| TRIAL COMMISSIONER                                                                                                                                                                                                              |                            |                      |           |                                          |
| SPECIFICATION                                                                                                                                                                                                                   |                            | DISPOSITION          |           | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [] |
| member of the New York City Police Department, in that he threatened to arrest § 87(2)(b) in that he told § 87(2)(b) that "I'm going to arrest your ass, so that you can always be in jail" without sufficient legal authority. |                            |                      |           |                                          |

*DC Bruchino*

FIRST DEPUTY COMMISSIONER

*10/12/23*

DATE

**POLICE COMMISSIONER'S APPROVAL**

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

*Edward A. Caber*  
POLICE COMMISSIONER

*12/15/23*  
DATE

**THIRD ENDORSEMENT**

First Deputy Commissioner to Police Commissioner October 6, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-24572 against Police Officer Erik Leonardo, Tax #938846. This cases were conferenced on March 328, 2023, before Assistant Deputy Commissioner, Trials, Jeff S. Adler, who reviewed and approved the negotiated penalty, which consists of fifteen (15) vacation days, and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

*DC Breckin*

*J*

Tania I. Kinsella

**FIRST DEPUTY COMMISSIONER**

TIK/jpc

**APPROVED**

DEC 15 2023  
*Edward A. Caen*  
EDWARD A. CAEN  
POLICE COMMISSIONER